

Batman's Treaty with the Aborigines at Merri Creek

Painted about 1875, roughly forty years after the meeting it shows, by an artist who was not there. No portrait of Batman was made while he was alive, so his face here is invented.

John Wesley Burt, circa 1875. State Library of Victoria, H92.196.



THE PAINTING

Batman's Treaty with the Aborigines at Merri Creek, painted by John Wesley Burt about 1875, roughly forty years after the meeting it shows.

THE DOCUMENT

A Proclamation signed by Governor Sir Richard Bourke on 26 August 1835, ten weeks after Batman's meeting.

WHAT BATMAN CLAIMED

That Kulin leaders agreed to a treaty selling him land stretching from Melbourne to Geelong, about 240,000 hectares.

WHAT BOURKE DECLARED

That no settler could ever buy land from Aboriginal people. Any such treaty was ‘void and of no effect.’

WHAT'S MISSING

No Kulin record of the meeting has survived. The painting, the treaty and the Proclamation were all made by colonists.

Sources: *Batman's Treaty with the Aborigines at Merri Creek*, John Wesley Burt, oil on canvas, circa 1875. State Library of Victoria, Pictures Collection, accession H92.196. Proclamation by Governor Sir Richard Bourke, 26 August 1835, National Archives of Australia. Reproduction terms for the painting have not yet been confirmed; see SOURCE-NOTICE.md.

Proclamation of Governor Sir Richard Bourke

Ten weeks after the meeting in the painting, the Governor of New South Wales declared that no settler could buy land from Aboriginal people, and that Batman's treaty was worth nothing.

Proclamation of Governor Sir Richard Bourke, 26 August 1835. Abridged; spelling and capitals as written.

Whereas, it has been represented to me, that divers of His Majesty's Subjects have taken possession of vacant Lands of the Crown within the limits of this Colony, under the pretence of a treaty, bargain, or contract, for the purchase thereof, with the Aboriginal Natives;

Now therefore, I the Governor, in virtue and in exercise of the power and authority in me vested, do hereby proclaim and notify to all His Majesty's Subjects, and others whom it may concern, that every such treaty, bargain, and contract with the Aboriginal Natives, as aforesaid, for the possession, title, or claim to any Lands lying and being within the limits of the Government of the Colony of New South Wales, is void and of no effect against the rights of the Crown;

and that all Persons who shall be found in possession of any such Lands as aforesaid, without the license or authority of His Majesty's Government, for such purpose first had and obtained, will be considered as trespassers, and liable to be dealt with in like manner as other intruders upon the vacant Lands of the Crown within the said Colony.

Given under my Hand and Seal, at Government House, Sydney, this twenty sixth Day of August, One thousand eight hundred and thirty five. (signed) Richard Bourke.

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Foundation to Level 2

A painting says Batman bought this land. A Proclamation says that was never possible. Which do you trust, and why?

STUDENTS AT FOUNDATION TO LEVEL 2 ALREADY KNOW

that pictures are made by people, and that a picture can show something that did not happen quite that way.

■ **Origin, features & purpose**

▲ **Historical context**

● **Historical interpretations**

◆ **Accuracy, usefulness & reliability**

WORKED EXAMPLE

This is a painting. I can see a big tree and long spears. A man in a white shirt is standing with Kulin people.

WHAT EACH MARKED PHRASE PROVES

- Names three things the child can point to in the painting: that it is a painting, the tree, and the spears.
- ▲ Names the group of people in the painting, using their own name rather than a general word.

Levels 3 and 4

A painting says Batman bought this land. A Proclamation says that was never possible. Which do you trust, and why?

STUDENTS AT LEVELS 3 AND 4 ALREADY KNOW

that Aboriginal peoples were here first, and that this land is the Country of the Kulin Nation.

■ Origin, features & purpose

▲ Historical context

● Historical interpretations

◆ Accuracy, usefulness & reliability

WORKED EXAMPLE

The painting shows a man named Batman meeting Aboriginal people from the Kulin Nation. On the ground are blankets with mirrors, shirts and beads on them. Batman said the Kulin people agreed to sell him their land. A different document called the Proclamation says no one could buy Aboriginal land at all.

WHAT EACH MARKED PHRASE PROVES

- Names the source, the event and one visible feature, the gifts on the blankets.
- ▲ Reports Batman's own claim about what happened.
- Reports a second document that disagrees with the first, without yet explaining why.

Grade 5

A painting says Batman bought this land. A Proclamation says that was never possible. Which do you trust, and why?

A GRADE 5 STUDENT ALREADY KNOWS

that Europeans came to Australia and took land, and that governments make written rules about who owns what.

- Origin, features & purpose
- ▲ Historical context
- Historical interpretations
- ◆ Accuracy, usefulness & reliability

WORKED EXAMPLE

This painting is a picture of Batman meeting Kulin people in 1835. I can see blankets with gifts on them and men holding spears. It shows the day Batman said he bought Kulin land. The Proclamation disagrees: it says no one could buy Aboriginal land. The painting is useful for showing what people wore and carried, but it cannot show me what was really said.

WHAT EACH MARKED PHRASE PROVES

- The blue phrases name what the picture shows and two things visible in it: gifts, and men with spears.
- ▲ The green phrase places the painting on the day of Batman's claim, without yet explaining why that claim was disputed.
- The orange phrase reports the Proclamation's disagreement without yet explaining what either side argues.
- ◆ The purple phrases give one use and one limit: clothing and objects are visible, spoken words are not.

LEARNING CONTINUUM AT GRADE 5

■ ORIGIN, FEATURES & PURPOSE	I can name a historical source and a feature I notice.
▲ HISTORICAL CONTEXT	I can say where or when a source comes from.
● HISTORICAL INTERPRETATIONS	I can notice that people may explain the past differently.
◆ ACCURACY, USEFULNESS & RELIABILITY	I can say one thing a source can and cannot tell us.

Year 6

A painting says Batman bought this land. A Proclamation says that was never possible. Which do you trust, and why?

A YEAR 6 STUDENT ALREADY KNOWS

that Australia was colonised by Britain, and that people who write about an event often want it remembered a particular way.

■ **Origin, features & purpose**

▲ **Historical context**

● **Historical interpretations**

◆ **Accuracy, usefulness & reliability**

WORKED EXAMPLE

The source is a painting of Batman's meeting with the Kulin Nation, showing gifts laid out on the ground and people talking. It was painted to remember an event some colonists were proud of. Batman claimed the Kulin people agreed to sell their land, but the Proclamation says such a sale was never allowed. The painting is useful for showing how colonists pictured the meeting, although it cannot tell us what the Kulin people actually thought.

WHAT EACH MARKED PHRASE PROVES

- 'A painting of Batman's meeting' and 'gifts laid out' identify the source and one feature; purpose is not yet explained.
- ▲ The green phrase explains why the painting was made: to remember an event, without yet placing it in a wider argument.
- The answer gives both claims but does not yet say why they conflict.
- ◆ It recognises usefulness for one thing, how colonists pictured the day, and a clear limit: Kulin thoughts are absent.

LEARNING CONTINUUM AT YEAR 6

■ ORIGIN, FEATURES & PURPOSE	I can identify different types of historical sources.
▲ HISTORICAL CONTEXT	I can identify the historical context of a source.
● HISTORICAL INTERPRETATIONS	I can recognise that historians may interpret historical events and developments differently.
◆ ACCURACY, USEFULNESS & RELIABILITY	I can recognise that some historical sources are more useful than others.

Year 7

EXPECTED

A painting says Batman bought this land. A Proclamation says that was never possible. Which do you trust, and why?

A YEAR 7 STUDENT ALREADY KNOWS

that colonisation happened over a long period, place by place, and that Melbourne was founded in the 1830s, decades after Sydney.

■ **Origin, features & purpose**

▲ **Historical context**

● **Historical interpretations**

◆ **Accuracy, usefulness & reliability**

WORKED EXAMPLE

The event is Batman's meeting with Kulin leaders in June 1835. The painting is a later artwork by John Wesley Burt, made about forty years afterwards to record the meeting. At this time, Batman wanted land, and colonists were arguing about whether buying land from Aboriginal people was even allowed. Batman's own deed, the paper in his hand in the painting, says the Kulin people agreed to sell; Bourke's Proclamation says any such sale was 'void and of no effect'. The painting is useful for showing how the meeting was later remembered, but it was painted forty years later, by someone who was not there.

WHAT EACH MARKED PHRASE PROVES

- The answer separates the 1835 event from the 1875 painting of it, then names when the painting was made and why.
- ▲ The green sentence places the meeting inside a real argument: whether buying Aboriginal land was legally possible at all.
- The orange phrases give both documents' claims side by side, quoting the Proclamation's own words.
- ◆ The purple judgement names a use, then bounds it: the artist's absence limits what the painting can prove.

LEARNING CONTINUUM AT YEAR 7

■ ORIGIN, FEATURES & PURPOSE	I can identify the origin, content features and purpose of historical sources.
▲ HISTORICAL CONTEXT	I can outline the historical context of a source.
● HISTORICAL INTERPRETATIONS	I can describe different historical interpretations of the past.
◆ ACCURACY, USEFULNESS & RELIABILITY	I can draw conclusions about the usefulness of sources.

Year 8

A painting says Batman bought this land. A Proclamation says that was never possible. Which do you trust, and why?

A YEAR 8 STUDENT ALREADY KNOWS

that Britain claimed Australia as land belonging to no one, which is the idea that let a Governor rule that Aboriginal people had no land to sell.

- Origin, features & purpose
- ▲ Historical context
- Historical interpretations
- ◆ Accuracy, usefulness & reliability

WORKED EXAMPLE

The painting is Burt's 1875 artwork of Batman's 1835 meeting with the Kulin Nation, made to show the meeting as calm and friendly. In the 1830s, Britain claimed Australia belonged to no one, so land could not legally be bought from its people. Batman argued his treaty was a fair purchase; Bourke's Proclamation rejects that, calling every such treaty 'void'; the painting takes neither side, it simply shows the meeting happening. The painting is useful evidence of how the meeting was later pictured, but it cannot be trusted as a record of what was said or agreed, because the artist was not there.

WHAT EACH MARKED PHRASE PROVES

- The blue phrases describe the painting and explain the effect it was made to create: a calm, friendly scene.
- ▲ The green phrase explains the legal argument of the 1830s that the painting sits inside.
- The answer shows three positions, Batman's, Bourke's, and the painting's own silence on who was right.
- ◆ It separates what the painting is useful for from what it cannot be trusted for, and gives the reason.

LEARNING CONTINUUM AT YEAR 8

■ ORIGIN, FEATURES & PURPOSE	I can describe the origin, content features and purpose of historical sources.
▲ HISTORICAL CONTEXT	I can describe the historical context of sources.
● HISTORICAL INTERPRETATIONS	I can explain different historical interpretations and contested debates about the past.
◆ ACCURACY, USEFULNESS & RELIABILITY	I can compare and contrast historical sources and ask questions about their accuracy, usefulness and reliability.

Year 9

A painting says Batman bought this land. A Proclamation says that was never possible. Which do you trust, and why?

A YEAR 9 STUDENT ALREADY KNOWS

that colonisation dispossessed Aboriginal peoples, that this was contested at the time, and that almost all surviving written records of it were made by colonists.

■ **Origin, features & purpose**

▲ **Historical context**

● **Historical interpretations**

◆ **Accuracy, usefulness & reliability**

WORKED EXAMPLE

The event is Batman's 1835 meeting with Kulin leaders; the source used here is Burt's 1875 painting, made forty years later for people who had not seen it happen. The meeting sits inside a bigger argument: colonists wanted land, while British law increasingly held that Aboriginal people could not sell land they were said not to own. Batman's deed presents willing agreement; Bourke's Proclamation presents the opposite, that no agreement could ever be legal; the two documents disagree because they were written for different purposes, one to justify a land claim, one to control it. The painting is strong evidence of how colonists wanted the meeting remembered, but weak evidence of what actually happened, since no Kulin account of the day survives.

WHAT EACH MARKED PHRASE PROVES

- The blue phrases separate the event from the source, and explain who the painting was really made for.
- ▲ The green phrases place both documents inside one bigger dispute, then name what each side was arguing for.
- Each document is explained through its purpose: justifying a claim, or controlling one.
- ◆ The purple comparison names what the painting is strong evidence for, and what it is weak evidence for, and why.

LEARNING CONTINUUM AT YEAR 9

■ ORIGIN, FEATURES & PURPOSE	I can explain the origin, content features and purpose of historical sources.
▲ HISTORICAL CONTEXT	I can explain historical context, including important events that influenced a source's creation.
● HISTORICAL INTERPRETATIONS	I can analyse historical interpretations and contested debates and identify the evidence used to support them.
◆ ACCURACY, USEFULNESS & RELIABILITY	I can compare and contrast historical sources and identify their accuracy, usefulness and reliability.

Year 10

A painting says Batman bought this land. A Proclamation says that was never possible. Which do you trust, and why?

A YEAR 10 STUDENT ALREADY KNOWS

that later generations retell their own founding stories to suit themselves, and that Australia argued about the truth of its settlement long after 1835.

■ **Origin, features & purpose**

▲ **Historical context**

● **Historical interpretations**

◆ **Accuracy, usefulness & reliability**

WORKED EXAMPLE

The source is a colonial painting of a disputed meeting. Its explicit content is a peaceful exchange of goods; its implicit message is that Batman's claim to the land was fair and orderly, aimed at later Australians who wanted to believe the colony began well. Painted in 1875, it reflects the values of its own time: order, progress, and an easy conscience about how the colony was founded. Batman's treaty and Bourke's Proclamation give opposite answers to one question, could this land be bought; they differ because one argues for private ownership and the other for the Crown's sole authority over the land. Overall, the painting is useful evidence of memory and myth-making, but poor evidence of the event itself: it was made decades later, by an artist who never saw the meeting, and no Kulin account from the day survives to check it against.

WHAT EACH MARKED PHRASE PROVES

- The blue phrases separate explicit content from implicit message, and name the audience the painting was made for.
- ▲ The green phrases use the painting's date to explain the values of the people who made and first viewed it.
- The evaluation explains why the documents disagree: they defend two different sources of authority over the land.
- ◆ The overall judgement holds two different kinds of usefulness apart, evidence of memory, and evidence of fact.

LEARNING CONTINUUM AT YEAR 10

■ ORIGIN, FEATURES & PURPOSE	I can analyse the origin, explicit and implicit meaning, and purpose of historical sources.
▲ HISTORICAL CONTEXT	I can explain historical context to identify the motivations, values and attitudes of a source's creator.
● HISTORICAL INTERPRETATIONS	I can evaluate historical interpretations and contested debates, including why or how interpretations differ.
◆ ACCURACY, USEFULNESS & RELIABILITY	I can compare and contrast sources and analyse their accuracy, usefulness and reliability.